

ORDER SHEET
IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN.
JUDICIAL DEPARTMENT
Writ Petition No. 14839 of 2024

The State through Deputy Prosecutor **Versus** Senior Civil Judge and another.
General Punjab, Multan.

S.No. of order/ proceeding.	Date of order/ proceeding.	Order with signatures of Judge, and that of parties or counsel, where necessary.
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04.06.2025. Ch. Sadiq ur Rehman, Additional Prosecutor General
and Ashfaq Ahmad Malik, Deputy Prosecutor
General.

Through this petition under Article 199 of
Constitution of Islamic Republic of Pakistan, 1973, an order
dated 27.09.2024, passed by learned Senior Civil Judge,
(Criminal Division), Sahiwal was assailed by State through
Deputy Prosecutor General, Punjab, Multan.

2. According to the brief facts, a case F.I.R. No.
794/2024, dated 07.06.2024, for offence under Section 462-I
of PPC was registered with Police Station Yousafwala,
District Sahiwal, under the authorship of Muhammad Sajid
Mehmood, Sub-Divisional Officer, MEPCO, against
respondent No.2 Touqeer Hussain alias Sain with the
allegations that said respondent/accused was found
committing the theft of electricity on 05.06.2024 by
installing the iron clutch directly with the main terminal,
which resulted into the loss amounting to Rs.50,000/- to the
department.

Challan/report under Section 173 of Cr.P.C. was
submitted in the above case, which was ordered to be
returned to District Public Prosecutor mainly on the ground
that it was not accompanied by complaint of an officer not
below Grade 17, which was required as condition precedent
under Section 462-O of PPC.

3. The learned Senior Civil Judge (Criminal Division), Sahiwal, did not forwarded the report under Section 173 of Cr.P.C. to the learned trial court (Sessions Court) and send the matter back to the District Public Prosecutor through the impugned order dated 27.09.2024.

4. In order to better appreciate the issue involved in the case, I think it appropriate to have a look of said provision of 462-O of PPC, as such the same is being reproduced below for the facility of reference:-

“462-O. Cognizance. (1) *The Court (Court of Sessions) shall try an offence punishable under this Chapter.*

(2) *Notwithstanding anything contained in the Code of Criminal Procedure, 1898 or any other law for the time being in force, the Court shall not take cognizance of an offence under this Chapter except on a complaint made with reasons to be recorded in writing alongwith full particulars of the offence committed under this Chapter, by duly authorized officer (not below Grade 17) of the Government or the distribution company, as the case may be.”*

Offence under Section 462-I of PPC was triable by Court of Sessions. When report under Section 173 of Cr.P.C. regarding the said offence is submitted before the Magistrate under Section 190 of Cr.P.C. he is supposed to send the case to the Court of Sessions without recording any evidence under Section 190 (2) of Cr.P.C.

If the Magistrate finds that report under Section 173 of Cr.P.C. is not accompanied by complaint, as required by Section 462-O of PPC, he is supposed to ask the prosecution to procure the said complaint from concerned officer not below the rank of Grade 17 and then to forward the report to the learned trial court (Sessions Court) alongwith above complaint, because said provision of 462-O of PPC has always to be read in conjunction with Section 230 of Cr.P.C., which reads as under:-

“230. Stay of proceedings if prosecution of offence in altered charge requires previous sanction. *If the offence stated in the new or altered or added charge is one for the prosecution of which previous sanction is necessary, the case shall not be proceeded with until such sanction is obtained, unless sanction has already*

been obtained for a prosecution on the same facts as those on which the new or altered charge is founded.”

Under the above provision of law when complaint or sanction of the Government, where it is required by the law, for taking cognizance by the Court has not been obtained, the court shall not proceed further unless the said complaint or sanction, as the case may be, has been obtained from the concerned quarter. If any reference in this regard is required, that can be had from a case reported as ‘State of Karnataka and Anr v. Pastor Petitioner Raju’ (AIR 2006 Supreme Court 2825).

After adhering to the above said aspects of the matter, I am of the view that the course adopted by respondent No.1 (Senior Civil Judge, Criminal Division, Sahiwal) was not legal. His duty was only to procure the complaint through Prosecution Department in terms of Section 462-O of PPC and then to forward the matter to the learned trial Court (Court of Sessions). I, therefore, set aside the impugned order.

5. Prosecution is at liberty to resubmit the report under Section 173 of Cr.P.C. observing legal formalities and respondent No.1 (Senior Civil Judge, Criminal Division, Sahiwal) is directed to act strictly in accordance with law/observations rendered in this order.

6. Petition accepted.

(TANVEER AHMAD SHEIKH)
JUDGE

APPROVED FOR REPORTING.

JUDGE